

was no time for AHM to respond prior to Plaintiff's Opposition being filed. In this context, Plaintiff's representation that "Defendant has not responded," is misleading.

The Court notes the apparent lack of genuine effort among counsel to meet and confer to resolve this discovery dispute prior to resorting to motion practice. "'It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]' [Citation.] A self-executing discovery system is 'one that operates without judicial involvement.' [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]" (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) The Court expects that, as part of any future discovery motion, counsel will produce evidence reflecting a genuine and fulsome effort at resolving the dispute through meet and confer.

Because AHM failed to satisfy the requirements of Code of Civil Procedure section 425.450, subdivision (b), the Motion is DENIED. However, the Court expects Plaintiff to follow through on the offer to appear for deposition and to produce documents. As such, this ruling is made without prejudice to AHM renewing its efforts to compel such deposition and production if issues arise after genuine and fulsome efforts at meeting and conferring.

****at 9:30 a.m.****

Ryan Robles v. Barry Callebaut USA, LLC

25CV000606

**PLAINTIFF'S MOTION FOR PRELIMINARY APPROVAL OF CLASS AND
REPRESENTATIVE ACTION SETTLEMENT**

TENTATIVE RULING: The matter is CONTINUED to August 25, 2026, at 8:30 a.m. in Dept. A to allow the moving party to provide sufficient notice of the motion. The Proof of Service on file indicates service by mail on June 29, 2026, which is only 15 court days prior to the hearing and therefore insufficient. (Code Civ. Proc., § 1005, subd. (b).) Because Defendant has not waived the defect in service, either expressly, or by filing substantive oppositions or non-oppositions to the motion, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Marilyn Louise Quint

23PR000119

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There is no new Status Report on file. Petitioner is therefore directed to appear and update the Court on the status of the case.